

TENTATIVE RULING

Edwin Lee Franco Flores

v.

Lithia Seaside, Inc., et al.

23CV003354

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories

Hearing Date: August 7, 2026

The motion of Plaintiff Edwin Lee Franco Flores ("Plaintiff") to compel Defendant Lithia Motors, Inc. ("Defendant") to provide further responses to Special Interrogatory Nos. 1 and 2 is **GRANTED**. All objections are overruled, except that the employees' privacy objection is preserved. The employees' privacy concerns will be addressed by a *Belaire-West*¹ notice. The Court will also issue a protective order limiting this information to be used for purposes of this litigation only. Defendant shall serve verified, Code-compliant further responses to Special Interrogatory Nos. 1 and 2, without objection, within 30 days of completion of the *Belaire-West* notice procedure. Furthermore, Plaintiff's request for \$6,680 in monetary sanctions is **GRANTED IN PART** for \$2,080.

Defendant's request for judicial notice ("RJN") is **GRANTED**. Its request for a stay is **DENIED** without prejudice to Defendant filing a properly noticed motion.

Request for Judicial Notice.

Defendant's request for this Court to take judicial notice of various court records filed in this case [RJN Exhs. A-C] and the related PAGA case [RJN Exhs. D-F], as well as those filed in *Sapien v. Lithia Del Norte, Inc.*, Los Angeles County Superior Court, Case No. 21STCV38930 [RJN Exhs. G-H] is **GRANTED**. The Court will take judicial notice of the existence, but not the truth of the contents of, such documents. [*See Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.]

Motion to Compel.

A. Legal Standard.

"Unless otherwise limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." [Code Civ. Proc. § 2017.010.]

A party serving interrogatories may file a motion for an order compelling further responses if that party believes an answer is, among other things, evasive or incomplete, or an

¹ See *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554.

objection lacks merit or is too broad. [Code Civ. Proc. § 2030.300, subd. (a).] If a timely motion to compel is filed, the responding party has the burden to justify any objection or failure to answer the interrogatories fully. [*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.]

In assessing the motion, a court should generally consider the following factors: (1) the relationship of the information sought to the issues framed in the pleadings; (2) the likelihood that disclosure will be of practical benefit to the party seeking discovery; and (3) the burden or expense likely to be encountered by the responding party in furnishing the information sought. [*Columbia Broadcast System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.]

The Court “shall” require the party receiving discovery to pay the propounding party’s reasonable expenses, such as attorney fees, for enforcing discovery unless it finds that the sanctioned party acted with “substantial justification” or that other circumstances make the sanction unjust. [Code Civ. Proc. § 2030.300, subd. (d).] The moving papers must include a request for sanctions and (1) list all persons, parties, and attorneys against whom sanctions are being sought; (2) specify the type of sanction sought; (3) specify the amount sought if monetary sanctions are involved; and (4) cite the authority for such sanctions. [Code Civ. Proc. § 2023.040.] When monetary sanctions are sought, the notice must be accompanied by a declaration “setting forth facts supporting the amount” of the monetary sanction requested. [*Ibid.*]

B. Defendant’s Objections.

Relevance. The objection is **OVERRULED**. Special Interrogatory Nos. 1 and 2 seek statewide non-exempt employee contact information and job details relevant to Plaintiff’s pleaded joint-employment and alter ego theories. Defendant did not challenge those allegations by demurrer or dispositive motion. Therefore, those allegations remain pending, and discovery relevant to the claims may proceed. Also, Defendant has not shown, with competent evidence, that a sequencing order or stipulation exists in the record. Indeed, Plaintiff denies the existence of any such order or agreement. Finally, Defendant asserts that it has no employees and that Plaintiff cannot obtain discovery regarding the employees of the dismissed entities. The Court disagrees. Plaintiff has alleged joint employment and alter ego, and he is therefore entitled to seek discovery to support the claims.

Undue Burden. The objection is **OVERRULED**. Defendant provided no declaration estimating the burden. [*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417 (“The objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.”).]

Premature Class Discovery. The objection is **OVERRULED**. Defendant's cited authorities² involve plaintiffs who lacked standing to represent the class, either under the pleadings or based on evidence previously discovered. The precertification discovery rules discussed in those cases only apply where the plaintiff lacks standing. In contrast, the allegations demonstrate that Plaintiff has standing to represent the class.

Privacy. The objection is **SUSTAINED IN PART**. Employees' privacy interests will be protected via a *Belaire-West* notice and a protective order limiting use of the information to this litigation only. These protections sufficiently address privacy concerns and do not bar discovery. [*Williams v. Superior Court* (2017) 3 Cal.5th 531, 553.]

Other Objections. The objections are **OVERRULED** because Defendant did not support them. All undefended objections are overruled. [See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; see also *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.]

C. Defendant's Substantive Responses.

Defendant only served unverified objections and did not substantially answer the interrogatories. Therefore, verified, code-compliant responses are required. [Code Civ. Proc. § 2030.220, subds. (a)-(c).]

D. Conclusion.

Plaintiff's motion to compel is **GRANTED**. Defendant shall serve verified, objection-free further responses to Special Interrogatory Nos. 1 and 2 within 30 days of completion of the *Belaire-West* notice procedure. A protective order will issue, limiting the use of the information to this litigation.

Monetary Sanctions.

Plaintiff's request for monetary sanctions totaling \$6,680 is **GRANTED IN PART**. Defendant's opposition was unsuccessful. Further, Defendant and defense counsel did not act with substantial justification. No other circumstances exist that would make the imposition of monetary sanctions unjust. Therefore, the Court will award monetary sanctions, but not in the full amount requested. Instead, the Court awards Plaintiff \$2,080, consisting of \$2,000 in reasonable attorney's fees for Pavel Rukavishnikov (5 hours at \$400/hour), and the \$80 filing fee. The Court finds Calyn Hadlock's rate excessive and time duplicative. In light of the foregoing, Plaintiff's request for monetary sanctions against Defendant and/or defense counsel, jointly and severally, is **GRANTED IN PART** for \$2,080.

² *CVS Pharmacy, Inc. v. Superior Court* (2015) 241 Cal.App.4th 300; *CashCall, Inc. v. Superior Court* (2008) 159 Cal.App.4th 273; and *First American Title Ins. Co. v. Superior Court* (2007) 146 Cal.App.4th 1564.

Request for Stay.

Defendant requests a stay of proceedings because of a similar case pending in the Los Angeles County Superior Court. In reply, Plaintiff argues that Defendant's request is procedurally proper but infringes on Plaintiff's right to due process because it was not made through a noticed motion. Plaintiff's argument is well-taken. A motion is considered made and pending once a notice of motion is filed. [Code Civ. Proc. § 1005.5.] Defendant has not filed a properly noticed motion for a stay. By raising this issue in opposition to Plaintiff's discovery motion, Defendant has deprived Plaintiff of the opportunity to respond fully. Due to this procedural defect, Defendant's request for a stay is **DENIED WITHOUT PREJUDICE** to filing a properly noticed motion later.

Conclusion.

Defendant's RJN is **GRANTED** as detailed above. However, its request for a stay is **DENIED WITHOUT PREJUDICE**.

Plaintiff's motion to compel is **GRANTED**. Defendant shall serve verified, Code-compliant further responses to Special Interrogatory Nos. 1 and 2, without objection, within 30 days of completion of the *Belaire-West* notice procedure.

Plaintiff's request for monetary sanctions is **GRANTED IN PART**. Defendant and its counsel, jointly and severally, shall pay a total of \$2,080 in reasonable sanctions, payable to Bibiyan Law Group, P.C., within 30 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.